

DOCUMENT TITLE: Arnesh Kumar v. State of Bihar and Another

COURT: Supreme Court of India

CITATION: (2014) 8 SCC 273 : AIR 2014 SC 2756 : 2014 Cri LJ 3707

BENCH: Chandramauli Kr. Prasad and Pinaki Chandra Ghose, JJ.

DATE OF JUDGMENT: 2014-07-02

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[Para 3]

The petitioner in this special leave petition seeks anticipatory bail in a case registered under Section 498A of the Indian Penal Code, 1860 and Section 4 of the Dowry Prohibition Act, 1961. The petitioner apprehends arrest following marital discord with his wife, who alleged demands for dowry.

[Para 5]

Arrest brings humiliation, curtails freedom, and casts scars forever. Lawmakers know that arrest is a tool of harassment and oppression in hands of unscrupulous police officers. No arrest can be made because it is lawful for the police officer to do so. The existence of the power to arrest is one thing, the justification for the exercise of it is quite another. A police officer must not make arrests in a routine manner upon mere allegation of commission of an offence.

[Para 7]

Section 41 of the Code of Criminal Procedure, 1973 provides the conditions under which police may arrest without warrant. In respect of offences punishable with imprisonment for a term which may be less than seven years or which may extend to seven years, arrest must not be made routinely. The police officer must be satisfied that such arrest is necessary:

- (a) to prevent such person from committing any further offence; or
- (b) for proper investigation of the offence; or
- (c) to prevent such person from causing the evidence of the offence to disappear or tampering with such evidence; or
- (d) to prevent such person from making any inducement, threat, or promise to witnesses; or
- (e) to ensure his presence before the court whenever required.

[Para 8]

Section 41A of the Code provides that where the arrest of a person is not required under Section 41(1), the police officer shall issue a notice directing the person against whom a reasonable complaint has been made to appear before him. Where such a notice is issued, it shall be the duty of that person to comply with the terms of the notice. So long as he complies with the notice, he shall not be arrested unless the police officer records reasons in writing.

[Para 11]

To ensure that police officers do not arrest accused persons unnecessarily and Magistrates do not authorise detention casually, this court issues the following mandatory directions:

1. All State Governments shall instruct police officers not to automatically arrest when a case under Section 498A IPC or offences with punishment up to 7 years is registered.
2. Police officers shall be provided with a checklist containing specified sub-clauses under Section 41(1)(b)(ii).
3. The police officer shall forward the checklist duly filled and furnish reasons necessitating arrest when producing the accused before the Magistrate.
4. The Magistrate shall peruse the report and record independent satisfaction before authorising further detention.
5. Notice of appearance in terms of Section 41A CrPC shall be served on the accused within two weeks from the date of institution of the case.
6. Failure to comply with these directions shall render the police officer and Magistrate liable for departmental action and contempt of court.